WILLOW

# Willow Firm Subscription Agreement

07042002 Inc. d/b/a Willow · Version of November 13, 2026

> **How to read this agreement:** Each section opens with a short summary in a box like this one. The summaries are for convenience only and are not part of the agreement. If a summary and the text differ, the text controls.

This Firm Subscription Agreement (the "**Agreement**") is entered into between 07042002 Inc., a Delaware corporation doing business as Willow ("**Willow**"), and the law firm or legal practice identified in the Order Form (the "**Firm**"). Willow and the Firm are each a "**Party**."

**Acceptance.** The Firm accepts this Agreement by signing an Order Form that references it. An electronic signature is a signature under the federal Electronic Signatures in Global and National Commerce Act and applicable state law, and has the same effect as a handwritten signature. Willow sets up the Firm's accounts after the Effective Date; there is no self-serve sign-up. Before first use, each Attorney confirms in the Services that the Firm has signed this Agreement, including Exhibit A, and Willow keeps a record of that confirmation. The individual who signs represents that they are authorized to bind the Firm, and that the Firm is a law firm or legal practice in good standing. The Agreement takes effect on the date the Order Form has been signed by both Parties (the "**Effective Date**").

**Documents that make up the Agreement.** The Agreement consists of: (a) any Order Form; (b) this Firm Subscription Agreement; (c) the Data Processing Addendum attached as Exhibit A (the "**DPA**"); and (d) any Feature Terms that apply to a feature the Firm chooses to use. The Willow Privacy Policy describes Willow's practices but is not part of the Agreement. If these documents conflict, the following order of precedence applies, but only to the extent of the conflict: the DPA (for the processing of Firm Customer Data), then the Order Form (only where it expressly states that it overrides a provision of this Agreement), then Feature Terms (for the feature they cover), then this Firm Subscription Agreement. The Member Terms govern Willow's relationship with Members and are not part of the Agreement. If the Member Terms conflict with the Agreement as to the Firm's rights or obligations, the Agreement controls, and no change to the Member Terms reduces the Firm's rights under the Agreement unless it is made under Section 14.2.

## 1. Definitions

> **Summary:** These terms have the same meaning in this Agreement, the Member Terms and the Privacy Policy.

1.1 "**Access Instructions**" means a Member's directions, given through the Services' separate access-instructions tool, about which documents may be released to which people, and on what trigger.

1.2 "**Attorney**" means an attorney admitted to practice law in at least one U.S. jurisdiction who is a partner, member, employee or of-counsel of the Firm and is designated by the Firm as an Authorized User.

1.3 "**Authorized User**" means an Attorney or a member of the Firm's staff whom the Firm authorizes to access the Services under the Firm's account.

1.4 "**Designated Recipient**" means a person whom a Member designates to receive access to some or all of the Member's documents, whether during the Member's lifetime or on a trigger set out in the Access Instructions.

1.5 "**Feature Terms**" means additional terms that Willow presents for a specific feature and that the Firm accepts before using that feature.

1.6 "**Fiduciary**" means an executor, personal representative or administrator of an estate; a trustee or successor trustee; an agent under a power of attorney; a health care agent, proxy or surrogate; a guardian or conservator; and any other person whom Willow reasonably determines holds a similar legal role for a Member or a Member's estate.

1.7 "**Firm Customer Data**" means all data, documents and information that the Firm or its Authorized Users submit to the Services, including information about the Firm's clients and prospective clients, and the outputs the Services generate from it, such as AI Summaries and other results of AI Analysis (Section 5.1).

1.8 "**Firm Internal Data**" means Firm Customer Data that the Firm keeps for its own use and does not share with a Member, such as attorney notes, unshared documents and AI Summaries that have not been approved. Firm Internal Data is never visible to Members and is not kept in a Member Account after the Member disconnects from the Firm or the Agreement ends.

1.9 "**AI Summary**" means a draft summary of an estate planning document or any part of it, including a summary of trust terms or a description of a "what-if" scenario, that the Services prepare using AI Analysis (Section 5.1) for review by an Attorney.

1.10 "**Member**" means an individual who holds a Willow account for their own estate planning (a "**Member Account**") and who has accepted the Member Terms, whether or not any documents have been added to the account yet. A client of the Firm whom the Firm has invited but who has not yet accepted the Member Terms is an "**Invited Client**."

1.11 "**Member Terms**" means Willow's terms of service for Members, Designated Recipients and Fiduciaries, as updated from time to time.

1.12 "**Order Form**" means an ordering document from Willow, signed by both Parties, that states the plan, fees and any special terms.

1.13 "**Services**" means Willow's web-based platform and related services for storing, organizing, analyzing, summarizing and sharing copies of estate planning documents, managing client accounts, scheduling consultations and coordinating the release of documents to Designated Recipients and Fiduciaries, as described in the Order Form and on Willow's website, and as updated from time to time.

1.14 "**Subscription Term**" means the period during which the Firm is subscribed to the Services, as set out in Section 12.

1.15 "**AI Analysis**" has the meaning given in Section 5.1.

## 2. The Services

> **Summary:** Willow gives the Firm access to its platform for the Subscription Term. Willow is a software provider, not a law firm, and doesn't give legal advice or refer clients. Willow can improve the Services over time, but won't take away core features during the Firm's current term, except where law, a third-party provider or security requires it.

2.1 **Access.** Subject to this Agreement and payment of the fees, Willow grants the Firm a non-exclusive, non-transferable, non-sublicensable right during the Subscription Term for its Authorized Users to access and use the Services for the Firm's internal business purposes in providing legal services to its clients.

2.2 **Willow is not a law firm.** Willow is not a law firm, does not practice law and does not provide legal advice. No attorney-client relationship forms between Willow and the Firm, any Authorized User or any client of the Firm. Use of the Services, including a booking or message sent through a Firm's booking page, does not by itself create an attorney-client relationship between the Firm and any person; that relationship forms only on the terms the Firm agrees with its client.

2.3 **No referrals or fee-sharing.** Willow does not recommend or refer clients to the Firm in exchange for payment, does not operate a lawyer referral service, and does not receive any portion of the Firm's legal fees. Willow's fees are fixed under the Order Form and owed regardless of what the Firm charges or collects from its clients. Willow does not recommend, rank or give paid placement to any attorney, including after a Member disconnects from the Firm, and any attorney directory or suggestion Willow offers to Members who have no attorney connected is neutral, is not paid for by any attorney or firm, and is not a referral or recommendation.

2.4 **Changes to the Services.** Willow may update, modify or improve the Services from time to time. Willow will not materially reduce the core functionality of the Services the Firm has subscribed to during the then-current Subscription Term, except where required by law, a third-party provider or security considerations, in which case Willow will give the Firm as much notice as reasonably practicable.

2.5 **Feature Terms.** Some features, including features Willow adds after the Effective Date, may require the Firm to accept Feature Terms before use. Feature Terms describe what the feature does, what data it uses and anything in this Agreement that works differently for that feature, and apply only to the feature they cover.

2.6 **Beta features.** Features Willow labels as beta, preview or early access are provided "as is" for evaluation, may be changed or discontinued at any time, and are excluded from any service commitments.

2.7 **Signing Services.** Willow may offer features for signing, witnessing or notarizing documents ("**Signing Services**") only in states where the law allows it, and only once Willow states on the page of its website that lists where the Services and their features are available (the "**availability page**") that the feature is offered in that state. Where Signing Services are offered, additional requirements apply, such as identity verification, consent to recording, and witness and notary rules, which Willow will show, together with any Feature Terms, before a signing starts. Where Signing Services are not offered, documents are signed outside Willow, and Willow stores copies (Section 4.8).

2.8 **Lead and intake forms.** Information that prospective clients and others submit through the Firm's lead or intake forms in the Services is Firm Customer Data. The Firm is responsible for the content of its forms, including any disclaimers they need and their compliance with attorney advertising and solicitation rules.

## 3. The Firm's Responsibilities

> **Summary:** The Firm is responsible for its users, its legal work and its professional obligations, including reviewing anything Willow's AI drafts, getting its clients' consent to use Willow, and complying with its jurisdiction's ethics rules on fees and client communications.

3.1 **Authorized Users.** The Firm is responsible for all Authorized Users and for all activity under the Firm's account. The Firm will ensure that each Authorized User keeps credentials confidential, uses multi-factor authentication, and complies with this Agreement, and will promptly remove access for anyone who leaves the Firm or no longer needs it. The Firm will notify Willow promptly at support@willow-inc.com of any suspected unauthorized access.

3.2 **Professional responsibility.** The Firm and its Attorneys remain solely responsible for the legal services they provide, for their compliance with the rules of professional conduct in each jurisdiction in which they practice, and for supervising their use of the Services, including the duties of competence, confidentiality, communication, supervision of nonlawyer assistance, and safekeeping of client property and files. The Firm is responsible for determining that its use of the Services is consistent with those rules.

3.3 **Client consent.** Before uploading a client's documents or inviting a client to the Services, the Firm will obtain any consent the Firm's professional obligations require, including informed consent to the storage of client documents with a third-party provider, to the processing of the sensitive personal information that those documents and related files contain (such as health, government identification and financial account information), and to the use of artificial intelligence to analyze them (AI Analysis, Section 5.1). Willow also asks each Member for their own consent to the handling of sensitive information when they create their account. Appendix 1 contains sample disclosure language the Firm may use, but the Firm decides what its clients are told.

3.4 **Engagement terms and fees.** The Firm alone sets, describes and collects any fees it charges its clients for its own services. Members pay Willow directly for their Plans (Section 4.2). Unless the Order Form provides otherwise, the Firm will not collect Willow's Plan fees from its clients or describe them as part of its own fees. The Firm is responsible for ensuring that its own fees are reasonable, properly described in its engagement terms, deposited in the correct account, and refunded where required.

3.5 **Firm communications.** When the Firm uses the Services to send newsletters, memoranda, reminders, check-ins, surveys or other communications to clients or prospective clients, the Firm is the sender and is responsible for their content and for compliance with laws governing commercial email and text messages and with attorney advertising rules.

3.6 **Accuracy and authority.** The Firm is responsible for the accuracy of Firm Customer Data, and represents that it has all rights, consents and authority needed to submit Firm Customer Data to the Services and to instruct Willow to process it under this Agreement.

3.7 **Acceptable use.** The Firm will not, and will not permit anyone to: (a) use the Services in violation of law or the rights of others; (b) upload malicious code or attempt to gain unauthorized access to the Services or other accounts; (c) reverse engineer, copy or build a competing product from the Services, except as permitted by law; (d) resell or provide the Services to anyone other than the Firm's clients as contemplated by this Agreement; (e) use the AI features for any purpose other than the Firm's estate planning practice, attempt to extract system instructions or bypass safeguards, or submit automated or excessive requests; or (f) upload passwords, PINs, security answers or cryptocurrency private keys or seed phrases, or full financial account numbers except as they appear incidentally in estate planning documents. Willow may apply reasonable usage limits and may suspend access that threatens the security or integrity of the Services.

3.8 **Statements to clients.** The Firm will not make statements to its clients about the Services that are inconsistent with the Member Terms or the Privacy Policy, including about how long documents are kept, who may receive them, or what happens to a Member Account if the client leaves the Firm or the Firm leaves Willow.

## 4. Client Accounts and Client Plans

> **Summary:** The Firm's clients each get their own Member Account, shown under the Firm's name alongside Willow's. Clients pay Willow directly, in the app, for their own Plan; the Firm pays only its subscription. The client keeps the account: if the Firm leaves Willow or the client changes lawyers, the client keeps the account and the documents in it, the Firm keeps a record of the former client, and the Firm can export a copy of what it uploaded.

4.1 **Member Accounts.** The Firm may invite its clients to the Services. Each client who accepts the Member Terms becomes a Member with their own Member Account. A Member is connected to one firm at a time. While a Member is connected to the Firm, the Member Account displays the Firm's name, logo, contact details and any other content the Firm provides for display to its clients (the Firm's "**Branding**"), alongside Willow's own branding, and the Firm's Attorneys and

Authorized Users may access the Member's whole Member Account to provide legal services, including documents and AI Summaries from an earlier firm, since the Member's acceptance of the Firm's request to connect is the Member's direction to show it, except files the Member uploads themselves and personal contacts the Member has not chosen to share with the Firm. Replies and check-in answers reach the Firm only while the Member is connected to it. The Firm is responsible for its Branding, confirms that it has the rights needed to display it, and grants Willow a license to display it in the Services for that purpose. Willow may change how and where Branding appears, and may add further kinds of Firm content to the Services, without amending this Agreement. Each Member has a direct relationship with Willow under the Member Terms, owns, as between the Member and Willow, the documents in their Member Account, and controls who receives them, including through their Access Instructions. An Attorney may, at the Attorney's discretion, link two Members' accounts as a couple so that they can buy a couples Plan. While either Member is connected to the Firm, the Attorney manages the link; a document the Attorney designates as joint is placed in both Members' accounts; the other effects of linking are described in the Member Terms; and the link continues if either Member disconnects from the Firm. The Firm will invite to the Services, and upload documents for, only clients who reside in a state listed on the availability page (Section 2.7).

4.2 **Client Plans.** Each Member buys and pays for their own Willow plan directly from Willow, in the Services, under the Member Terms (a "**Plan**"). The Firm pays only its own subscription fee. A Member Account is free, and the Services offer a Plan to a Member once an Attorney is connected to the Member Account. Without a Plan, a Member can view and download copies of the documents the Firm sends to their Member Account and see what others share with them. A Member needs an active Plan to see the AI Summaries the Firm has approved, to share documents with anyone and to add their own documents or supporting files, as described in the Member Terms. People a Member shares with never pay to see what was shared with them; a release request for an account whose Plan has lapsed may carry a reasonable fee under the Member Terms, shown before the request is submitted. Unless the Order Form provides otherwise, the Firm does not pay for or collect fees for any Member's Plan.

4.3 **Invited Clients.** Information the Firm uploads about an Invited Client is Firm Customer Data held only for the Firm. Willow will not contact an Invited Client except to send the invitation and reminders the Firm requests.

4.4 **If the Firm's subscription ends.** If the Firm cancels, or Willow terminates the Agreement for non-payment or breach:

- (a) the Firm's Authorized Users lose access to the Services, except that the export described in Section 7.5 remains available on request for 30 days. Willow may also switch off the Firm's booking page and stop the automatic messages the Services send on the Firm's behalf. Ending the Firm's access never limits any Member Account;
- (b) each Member keeps their Member Account, their documents and any Plan. Willow will tell each connected Member in advance that the Firm no longer offers Willow, that the Member may ask the Firm for a copy of their file, and that the Member's account continues, and will then end the Member's connection to the Firm, with the effects described in Section 4.5. The notice will

not recommend any other attorney, although Willow may later suggest attorneys to a Member who has no attorney connected, as described in Section 2.3; and

- (c) the Firm may obtain the export described in Section 7.5, to satisfy its own record-keeping obligations.

4.5 **If a Member disconnects from the Firm.** A Member may end their connection with the Firm at any time by asking Willow or in any other way the Services offer. When a Member asks Willow, Willow may ask the Firm to remove the Member as a client, and the Firm agrees to do so promptly. The Firm may also end it by removing the Member as a client, and remains responsible for any notice its professional obligations require. When the Firm removes a Member, Willow sends the Member, on the Firm's behalf and in the name of the Attorney, a short notice of the disconnection, which does not replace any notice the Firm's professional obligations require. Willow may end it under Section 4.4. When the connection ends (the "**disconnection date**"):

- (a) Willow notifies the Firm, and the Firm can no longer see that Member Account, including anything added after the disconnection date. The Firm keeps a read-only record of the Member as a former client, as attorneys are required to: the Member's contact details and the Firm's relationship notes; the documents that were in the Member Account, with their approved AI Summaries and files, including documents from an earlier firm, and documents the Firm uploaded but never shared, as files without draft summaries; the Member's team and, if the Member shared them, the Member's contacts; the Firm's own family entries and notes; and the messages, posts, surveys and check-ins the Firm sent the Member. Raw AI extractions are not kept. The record is available in the Firm's history in the Services and in every export under Section 7.5 for as long as this Agreement continues;
- (b) the documents the Firm shared with the Member stay in the Member Account as the Member's own copies. Firm Internal Data is never visible to Members and is not part of the Member Account (Section 1.8);
- (c) AI Summaries the Firm approved stay in the Member Account as last approved, and are not updated after the disconnection date;
- (d) the Member's sharing choices and Access Instructions keep working. Release requests go to the Member's new attorney if the Member connects one, and otherwise Willow handles them under the Member Terms;
- (e) the Firm's emails and other messages to that Member through the Services stop, and the Firm's Branding is no longer shown in that Member Account; and
- (f) the Member may connect a different firm, which then sees the Member's whole Member Account, including the documents and AI Summaries the Firm shared with the Member; a couple link stays in place; and a document the Member held jointly with another Member becomes a separate copy in each account.

Any refund of fees the Member paid to the Firm is a matter between the Member and the Firm. The Member's Plan with Willow is not affected by the disconnection.

4.6 **No solicitation of the Firm's clients.** While a Member is connected to the Firm, Willow will not market the services of any other attorney or law firm to that Member. Willow may send the Member service, security, billing and account communications, and the notices described in Sections 4.4 and 4.5.

4.7 **Releases to Fiduciaries.** Willow releases documents to Designated Recipients and Fiduciaries according to the Member's Access Instructions and the Member Terms, including releases on a Member's death or another release event the Member chooses under the Member Terms. While a Member is connected to the Firm, release requests for that Member are sent to an Attorney, and the Firm is responsible for verifying them. The Attorney verifies each request under the Firm's own procedures, which may require more proof or further steps than the minimum described in the Member Terms (proof of identity, proof of the death or other release event, and anything else reasonably requested), and decides whether to grant, deny or re-lock the release. Willow does not separately verify a request that an Attorney handles. The Attorney's decision is the Firm's responsibility, but only for the authority determination the Attorney actually makes; in making it, the Attorney carries out a step in Willow's release process under the Member Terms. Willow will not seek indemnity or other recovery from the Firm for a release decision an Attorney makes in good faith and in line with the Member Terms. Attorneys cannot change a Member's sharing choices. Willow is responsible for operating the release tools and for verifying requests for Members who have no Attorney connected. Willow does not make legal or medical determinations about a person's authority, a document's validity or a Member's capacity.

4.8 **Copies, not originals.** The Services store copies of documents. Willow does not hold original wills, is not a will depository, does not certify any document as a true copy, and does not file or deposit documents with any court. The Firm remains responsible for the custody of any originals it holds. If Willow later offers Signing Services (Section 2.7) or a feature for holding original or electronic documents, the Feature Terms for that feature will say what changes.

4.9 **Revoked or replaced documents.** The Firm remains responsible for advising its clients on how to revoke or replace a document, and for updating the documents and sharing in a connected Member Account when a document is replaced. Where the Services offer a way to mark a document as revoked or no longer current, only an Attorney may use it; the marking tells the people the Member has shared the document with that it is no longer current, is not a legal revocation and has no legal effect on the document, and the Services say so to Members and recipients.

## 5. AI Analysis and Connected Services

> **Summary:** Willow's AI analyzes the documents an Attorney uploads or manages: it identifies what each document is and the people and key terms in it, and drafts summaries. An Attorney must review each summary before a client sees it, and the Firm is responsible for what it approves and shares. No AI model is trained on the Firm's data. Connections to calendar, email, contacts and video services are optional and used only for the features the Firm turns on.

5.1 **What the AI does.** The Services use artificial intelligence to analyze documents that an Attorney uploads or manages, to classify them, identify the people and key terms in them, and prepare draft summaries for Attorney review ("**AI Analysis**"). For example, AI Analysis may identify the type of document, the people who made it, their spouse and their address, and use that information to set up a client record for the Firm, which can happen before the client has a Willow account. It may also identify trust terms, describe "what-if" scenarios and summarize individual sections. Willow may improve AI Analysis within this description without changing this Agreement. Any AI feature that goes beyond it, such as drafting assistance, will be offered under its own Feature Terms.

5.2 **Attorney review.** AI Summaries and other results of AI Analysis are drafts. They may be incomplete or inaccurate, and they are not legal advice. The Services do not show an AI Summary to a Member until an Attorney approves it, and then only as Section 4.2 allows. The Firm will ensure that an Attorney reviews each AI Summary before approving it or relying on it, and that client records and other information the Services set up from AI Analysis are checked before the Firm relies on them. The Firm is solely responsible for any AI Summary it approves, edits or shares, and for any advice given to its clients.

5.3 **Consent to AI processing.** The Firm authorizes Willow to process Firm Customer Data using the AI providers listed on Willow's subprocessor page, solely to perform AI Analysis and provide the Services.

5.4 **No training.** Willow will not use Firm Customer Data, or the content of any Member's documents, to train or fine-tune any artificial intelligence model, and its contracts with AI providers prohibit them from doing so. Willow may improve the Services by refining its own instructions and summary components, informed by the kinds of edits Attorneys make, provided that no Firm Customer Data is retained in those instructions or components. Willow may also keep, for the Firm's own use, preferences and style instructions that the Firm's Attorneys set or that reflect their edits, so that AI Summaries for the Firm follow the Firm's preferred approach. Those preferences are Firm Customer Data, are used only for the Firm, and are deleted with the Firm's other data when the Agreement ends.

5.5 **AI providers.** Willow's AI providers process Firm Customer Data only as subprocessors under the DPA, to return the results of AI Analysis to Willow. Their contracts with Willow prohibit them from using it to train their models and require them to keep it confidential. Any temporary retention by an AI provider, including for safety monitoring or legal compliance, is governed by those contracts, and Willow describes its current configuration on its subprocessor page.

5.6 **No AI Analysis without an Attorney.** The Services do not perform AI Analysis on documents in Member Accounts that have no Attorney connected.

5.7 **Connected Services.** Authorized Users may choose to connect third-party applications, accounts and data sources to the Services, such as calendar, email, contacts, video conferencing, practice management, document management and database services (each a "**Connected Service**"). Willow lists the Connected Services it currently offers on its website and may add, change or retire them at any time. For each Connected Service the Firm enables:

- (a) the Firm authorizes Willow to access, retrieve, send and synchronize data between the Services and the Connected Service as needed to provide the features the Firm turns on, within the permissions granted;
- (b) the Firm's use of the Connected Service is governed by its agreement with that provider, and the Firm is responsible for having the rights and client consents needed to move data between them;
- (c) data that the Firm directs Willow to send to a Connected Service leaves Willow's control once delivered, and is not Firm Customer Data processed by Willow under the DPA after that point. The provider of a Connected Service is not Willow's subprocessor;
- (d) Willow uses data from a Connected Service only to provide the features the Firm uses, never for advertising or to train any artificial intelligence model, and in compliance with any additional restrictions the provider imposes, as described in the Privacy Policy;
- (e) Willow is not responsible for the availability, security, accuracy or acts of any Connected Service or its provider, or for changes a provider makes that limit or end an integration; and
- (f) some Connected Services may require Feature Terms or additional fees, which Willow will present before the Firm enables them.

Where the Firm uses the booking features of the Services, the Services determine an Attorney's availability only from the calendars the Attorney has connected, and treat a meeting created through a connected video service as busy time only if it appears on a connected calendar. The Firm is responsible for keeping its connected calendars current.

## 6. Fees and Payment

> **Summary:** The Firm pays monthly in advance through a payment link, from its operating account and never a trust account. The first invoice is sent when Willow sets up the Firm's accounts and is due in 7 days; access starts right away. If the first payment doesn't arrive within 14 days, or a later payment is 30 days overdue, Willow may suspend the Firm's access until it is paid; its clients' accounts are never cut off because of the Firm's bill. Plan changes, payment-method changes and cancellations go through the Firm's Willow representative by email.

6.1 **Fees.** The Firm will pay the fees stated in the Order Form or, where the Order Form states none, Willow's standard fee as stated by Willow in writing when the Order Form is signed. Members pay Willow directly for their own Plans under the Member Terms, and those fees are not charged to the Firm. Fees are quoted and payable in U.S. dollars and exclude taxes.

6.2 **Billing.** When Willow sets up the Firm's accounts, it sends the Attorney named in the Order Form as the Firm's billing attorney, or if none is named the first Attorney whose account Willow sets up (the "**Billing Attorney**"), a first monthly invoice with a payment link, due within 7 days. Access to the Services does not wait for payment. Paying the first invoice starts a monthly subscription: the Firm authorizes Willow, through its payment processor, to charge the payment method used for the subscription fee each month, in advance, until the Agreement ends. Each

charge is due on the date it is made. Willow sends a receipt for each charge to the Billing Attorney. The Firm will keep a valid payment method on file and will contact its Willow representative (Section 14.1) to change it.

6.3 **Operating account only.** The Firm will pay Willow only from its operating account, or with a card or other payment method paid from that account, and never from a client trust, IOLTA or escrow account.

6.4 **Late payment and suspension.** Willow may suspend the Firm's access to the Services if the Firm's first payment has not been received within 14 days after Willow sets up the Firm's accounts, or if any later amount remains unpaid 30 days after it was due. Willow will email the Billing Attorney when it suspends access, and will restore access when the Firm pays what it owes. If the suspension continues, Willow may terminate under Section 12.3. Suspending or ending the Firm's access never limits any Member Account, and the export described in Section 7.5 remains available on request. Overdue amounts may accrue interest at the lesser of 1% per month or the maximum rate permitted by law.

6.5 **Billing disputes.** The Firm must notify Willow in writing of any good-faith dispute about an amount charged within 30 days after the charge. The Parties will work together in good faith to resolve it, and Willow will not suspend the Firm for an amount under good-faith dispute while the Firm pays all undisputed amounts.

6.6 **Discounts and special pricing.** Willow may offer the Firm discounts, credits or special pricing through an Order Form, a promotional code, or a written offer by email from an authorized Willow representative. Special pricing applies only to the Firm and period stated, creates no obligation to offer the same terms to anyone else, and, when it ends, the Firm's fees return to Willow's then-current standard pricing after at least 30 days' notice. Willow does not tie any discount or fee to the number of the Firm's clients who become Members or to any fees the Firm charges its clients.

6.7 **Price changes.** Willow may change its standard fees on at least 30 days' written notice. A change takes effect at the start of the Firm's next billing period after the notice period ends. The Firm may cancel before the change takes effect under Section 12.2.

6.8 **Taxes.** The Firm is responsible for all sales, use, value-added and similar taxes on the fees, other than taxes on Willow's income.

6.9 **No refunds.** Except as stated in this Agreement or required by law, fees paid are non-refundable, and no refunds or credits are given for partial months or unused Member Accounts.

## 7. Data and Ownership

> **Summary:** As between the Firm and Willow, the Firm owns what it uploads; as between a Member and Willow, the Member owns the documents in their Member Account. Willow uses the data only to provide, secure and support the Services. The Firm can download its export (the documents it uploaded, its client list, its email log and its records of past clients) at any time, and for 30 days after it leaves.

7.1 **Firm Customer Data.** As between the Firm and Willow, the Firm owns Firm Customer Data. The Firm grants Willow a limited, non-exclusive license to host, copy, process, transmit and display Firm Customer Data only as needed to provide, secure and support the Services, as instructed by the Firm and as described in the DPA.

7.2 **Member documents.** Documents and information that a Member uploads or that are stored in a Member Account are also subject to the Member's rights under the Member Terms. The Firm acknowledges that a Member may download their documents, change their Access Instructions, disconnect from the Firm, and keep their Member Account after the Firm's subscription ends.

7.3 **Usage data.** Willow may collect technical and usage data about the operation of the Services, and may use it, and aggregated or de-identified data that does not identify the Firm, any individual or any client, to operate, secure and improve the Services.

7.4 **Willow's property.** Willow and its licensors own the Services, including the software, instruction libraries, templates, designs and documentation, and all improvements to them. If the Firm gives Willow feedback, Willow may use it without restriction or obligation. No rights are granted except as expressly stated in this Agreement.

7.5 **Export.** During the Subscription Term, Authorized Users may download the Firm's export from the Services at any time, in commonly used formats. It contains: the Firm's client list (name, email address, telephone number, status and the date connected); the sent-email log (when, to whom, subject, type and delivery status, never the text of an email); every document the Firm uploaded to the Member Accounts it manages, including documents not yet shared with the Member; the files the Firm attached to check-ins; and the Firm's records of past clients (Section 4.5(a)). For 30 days after the Subscription Term ends, Willow will provide the same export on request. The export does not include notes, reminders, unapproved AI Summaries, leads or settings. After the export period, Willow deletes the Firm's data as described in the DPA; what a Member keeps in their own Member Account stays with the Member and never includes Firm Internal Data. Willow will not withhold the export for non-payment: Willow provides it on request during any suspension and for 30 days after termination. Willow acknowledges that Firm Customer Data may be subject to attorney-client privilege and work-product protection, and claims no lien or other interest in it.

## 8. Confidentiality, Security and Legal Process

> **Summary:** Each side keeps the other's confidential information private. Willow protects client data with the safeguards in the DPA, tells the Firm about security incidents, and promptly notifies the Firm of a subpoena so that it can object, unless the law forbids it; if the Firm asks Willow to resist, the Firm covers Willow's reasonable costs.

8.1 **Confidential Information.** "**Confidential Information**" means non-public information that a Party discloses to the other that is marked confidential or should reasonably be understood to be confidential, including Firm Customer Data and the terms of any special pricing. It does not include

information that is or becomes public through no fault of the receiving Party, was already lawfully known to it, is independently developed, or is lawfully received from a third party without a duty of confidentiality.

8.2 **Obligations.** The receiving Party will use Confidential Information only to perform under this Agreement, will protect it with at least reasonable care, and will disclose it only to its employees, contractors and service providers who need it for that purpose and are bound by written confidentiality obligations at least as protective as this Section.

8.3 **Security.** Willow will maintain the administrative, technical and physical safeguards described in the DPA. Willow stores Firm Customer Data in the United States. Authorized Willow personnel may access it remotely from other countries under the safeguards in the DPA, except from any country to which United States law restricts the transfer of such data, and subprocessors process it in the locations listed on Willow's subprocessor page.

8.4 **Security incidents.** Willow will notify the Firm of a Security Incident (as defined in the DPA) without undue delay, and in any event within 72 hours after becoming aware of it, or within any shorter period required by law, and will cooperate with the Firm as described in the DPA.

8.5 **Legal process.** If Willow receives a subpoena, court order or other legal process seeking Firm Customer Data, Willow will, unless legally prohibited, promptly notify the Firm so that it may seek a protective order or otherwise object, including on grounds of attorney-client privilege. Willow will refer the requester to the Firm where practicable, and will disclose only what it is legally required to disclose.

8.6 **Cost of legal process.** If the Firm asks Willow to object to or resist legal process concerning Firm Customer Data, or withholds consent to a production that Willow would otherwise make, the Firm will reimburse Willow's reasonable costs of doing so, including reasonable attorneys' fees, unless the legal process arises from Willow's own conduct.

## 9. Warranties and Disclaimers

> **Summary:** Willow promises the Services will work materially as described in the Order Form and Willow's documentation, and will be run with reasonable care; if they don't and Willow can't fix it within 30 days of notice, the Firm's remedy is to end the affected Services and get a refund for the rest of the term. Willow doesn't promise that AI output is accurate or that any document is legally valid; that judgment is the Firm's.

9.1 **Mutual warranties.** Each Party represents that it has the authority to enter into this Agreement, and that its performance will comply with laws applicable to it.

9.2 **Willow's warranty.** Willow warrants that during the Subscription Term the Services will perform materially in accordance with the Order Form and Willow's documentation for the Services, and that Willow will provide them with commercially reasonable care and skill. If Willow

breaches this warranty and fails to correct the breach within 30 days of the Firm's written notice, the Firm may terminate the affected Services and receive a refund of prepaid fees for the remainder of the term. This is the Firm's exclusive remedy for breach of this warranty.

9.3 **Disclaimers. Except as expressly stated in this Agreement, the Services are provided "as is" and "as available," and Willow disclaims all other warranties, express, implied or statutory, including warranties of merchantability, fitness for a particular purpose, title and non-infringement. Without limiting the foregoing, Willow does not warrant that: (a) AI Summaries or other outputs will be accurate, complete or suitable for any purpose; (b) any document is valid, enforceable, current or effective, or that a copy will be accepted by any court, financial institution, health care provider or other third party; (c) the Services will be uninterrupted or error-free; or (d) third-party services integrated with the Services will be available or perform as expected.**

9.4 **Security.** No system is completely secure. Provided Willow has maintained the safeguards required by the DPA, Willow is not responsible for unauthorized access to or loss of data caused by the criminal acts of third parties.

## 10. Indemnification

> **Summary:** Willow defends the Firm if someone claims the Willow software infringes their rights. The Firm defends Willow against claims about the Firm's legal work, its client data, its fees and client communications, and serious breaches of its responsibilities in Section 3.

10.1 **By Willow.** Willow will defend the Firm and its partners, employees and Authorized Users against any claim by a third party alleging that the Services, as provided by Willow and used in accordance with this Agreement, infringe or misappropriate that third party's intellectual property rights, and will indemnify and hold them harmless from damages, fines and costs finally awarded or agreed in settlement, including reasonable attorneys' fees, arising out of or relating to that claim. If the Services are, or Willow believes they may be, subject to such a claim, Willow may modify them to be non-infringing, obtain a license, or terminate the affected Services and refund prepaid fees for the unused term. Willow has no obligation for claims arising from Firm Customer Data, from combinations with items Willow did not provide, or from use in breach of this Agreement.

10.2 **By the Firm.** The Firm will defend Willow and its officers, directors, employees and agents against any claim by a third party, including a client or former client of the Firm, arising out of or relating to: (a) the legal services provided by the Firm or its Attorneys, including any AI Summary the Firm approved, edited or shared, and any release decision an Attorney made under Section 4.7 in bad faith, with gross negligence or willful misconduct, or without following the verification steps in the Member Terms; (b) the Firm's lack of any right, consent or authority needed to submit Firm Customer Data to the Services, or the content of Firm Customer Data, except to the extent the claim results from Willow's breach of this Agreement or the DPA, or Willow's negligence or willful misconduct; (c) the fees the Firm charges its clients or its engagement terms; (d) communications

the Firm sends through the Services; or (e) the Firm's or its Authorized Users' material or willful breach of Section 3, and will indemnify and hold them harmless from damages, fines, penalties and costs finally awarded or agreed in settlement, including reasonable attorneys' fees, arising out of or relating to that claim.

10.3 **Procedure.** The indemnified Party will: (a) give the indemnifying Party prompt written notice of the claim (a delay excuses the indemnifying Party only to the extent it is prejudiced); (b) give the indemnifying Party sole control of the defense and settlement, except that no settlement that imposes an obligation or admission on the indemnified Party may be made without its prior written consent, not to be unreasonably withheld; and (c) provide reasonable cooperation at the indemnifying Party's expense. The indemnified Party may participate with counsel of its own choosing at its own expense.

## 11. Limitation of Liability

> **Summary:** Neither side is liable for indirect losses, such as lost profits. Otherwise, each side's total liability is capped at the greater of the fees paid in the last 12 months or $5,000, except for the obligations listed in Section 11.3.

11.1 **Exclusion of indirect damages. To the fullest extent permitted by law, neither Party will be liable to the other for any indirect, incidental, special, consequential, exemplary or punitive damages, or for lost profits, revenue, goodwill or data, arising out of or relating to this Agreement, whether in contract, tort (including negligence), strict liability or any other theory, even if advised of the possibility of such damages.**

11.2 **Cap. To the fullest extent permitted by law, each Party's total liability arising out of or relating to this Agreement, for all claims together, will not exceed the greater of (a) the fees paid and payable by the Firm to Willow in the 12 months before the event giving rise to the liability, and (b) US$5,000.**

11.3 **Exceptions.** Sections 11.1 and 11.2 do not limit: (a) the Firm's obligation to pay fees; (b) either Party's obligations under Section 10; or (c) liability that cannot be limited under applicable law, including for a Party's fraud, gross negligence or willful misconduct.

11.4 **Basis of the bargain.** The Parties agree that the limitations in this Section are an essential basis of the bargain, are reflected in the fees, and apply even if a limited remedy fails of its essential purpose.

## 12. Term and Termination

> **Summary:** The subscription renews month to month. The Firm can cancel at any time by emailing its Willow representative or support@willow-inc.com, effective at the end of the month already paid for. Either side can end it for a serious breach that isn't fixed within 30 days.

12.1 **Term.** The Subscription Term begins on the Effective Date and continues for successive one-month periods until cancelled. Each month is charged in advance under Section 6.2.

12.2 **Cancellation by the Firm.** The Firm may cancel at any time by email to its Willow representative or to support@willow-inc.com. Willow ends the subscription at the end of the monthly billing period already paid for and will not charge the Firm for any later month.

12.3 **Termination for cause.** Either Party may terminate this Agreement by written notice if the other Party materially breaches it and fails to cure the breach within 30 days after receiving notice describing it. Willow may also terminate or suspend immediately if the Firm's account remains suspended for non-payment for 30 days, if the Firm or an Authorized User uses the Services unlawfully or in a way that threatens their security, or if the Firm ceases to be a law firm or legal practice in good standing.

12.4 **Effect.** On expiration or termination, the Firm's right to use the Services ends, Sections 4.4 and 7.5 apply, and all unpaid fees accrued through the effective date become due. Sections 2.8, 3.2 through 3.6, 4.4 through 4.9, 5.4, 5.5, 6, 7, 8, 9.3, 9.4, 10, 11, 12.4, 13 and 14, the DPA, and any other provision that by its nature should survive, survive termination.

## 13. Governing Law and Disputes

> **Summary:** Delaware law applies. Claims against Willow go to the Delaware courts; claims by Willow to collect unpaid fees can go to the courts where the Firm is based or to Delaware. Except for unpaid fees and urgent court orders, both sides negotiate for 30 days before suing. Both sides waive a jury.

13.1 **Governing law.** This Agreement is governed by the laws of the State of Delaware, without regard to its conflict-of-laws rules. The United Nations Convention on Contracts for the International Sale of Goods does not apply.

13.2 **Courts.** Any action by the Firm arising out of or relating to this Agreement will be brought exclusively in the state or federal courts located in New Castle County, Delaware. Any action by Willow to collect fees owed under this Agreement may be brought in the state or federal courts for the county in which the Firm's principal office is located, or in the courts located in New Castle County, Delaware, at Willow's option. Each Party consents to the personal jurisdiction of those courts and waives any objection to venue there.

13.3 **Informal resolution.** Before starting any action other than for unpaid fees or urgent injunctive relief, the Party with the claim will give the other written notice describing it, and senior representatives of both Parties will negotiate in good faith for at least 30 days.

13.4 **Jury waiver. Each Party knowingly and voluntarily waives any right to a trial by jury in any action arising out of or relating to this Agreement.**

13.5 **Injunctive relief.** Either Party may seek injunctive or other equitable relief in any court of competent jurisdiction to protect its Confidential Information or intellectual property.

## 14. General Terms

14.1 **Notices and the Willow representative.** Willow names a representative for the Firm (the "**Willow representative**"), identified in the Order Form or in the Firm's welcome email, who handles plan changes, payment-method changes and cancellations by email. Notices to Willow must be sent by email to support@willow-inc.com. Notices and receipts to the Firm are sent by email to the Billing Attorney. A notice is effective on the next business day after it is sent without a bounce message.

14.2 **Changes to this Agreement.** Willow may update this Agreement by giving the Firm at least 7 days' notice by email and in the Services. An update takes effect on the date stated in the notice, which will be no earlier than the end of the notice period, and Willow will ask the Firm to sign the updated Agreement; each Attorney will be asked to confirm that the Firm has signed it before continuing to use the Services. If the Firm does not wish to accept an update, it may cancel under Section 12.2 before the update takes effect, and Willow will refund any fees prepaid for the period after cancellation. Otherwise, the Firm must sign the update to continue using the Services. Changes to fees are made only under Sections 6.6 and 6.7. An Order Form or other amendment negotiated with the Firm may be changed only in a writing signed by both Parties; an email from an authorized Willow representative offering special pricing under Section 6.6 counts as such a writing for those fees only.

14.3 **Assignment.** Neither Party may assign this Agreement without the other's prior written consent, except that either Party may assign it without consent to a successor in a merger, acquisition or sale of all or substantially all of its relevant assets, provided the successor agrees in writing to be bound by it. Any other attempted assignment is void.

14.4 **Force majeure.** Neither Party is liable for a failure or delay in performance, other than payment obligations, caused by events beyond its reasonable control, including natural disasters, epidemics, war, terrorism, labor disputes, government action, failures of public utilities or the internet, outages of third-party hosting or AI providers, and cyberattacks that occur despite the safeguards required by the DPA. Outages of third-party providers excuse only the availability of the Services, not Willow's obligations under Section 8 or the DPA.

14.5 **Relationship of the Parties.** The Parties are independent contractors. Nothing in this Agreement creates a partnership, joint venture, agency, fiduciary or employment relationship, or a fee-sharing arrangement.

14.6 **No third-party beneficiaries.** This Agreement benefits only the Parties. Members, Designated Recipients, Fiduciaries and other clients of the Firm are not third-party beneficiaries of it; their rights with Willow are governed by the Member Terms.

14.7 **Publicity.** Willow may identify the Firm by name and logo as a customer on its website and in marketing materials, unless the Firm opts out by notice to Willow. Any testimonial, quote or case study about the Firm requires the Firm's prior written approval. The Firm will not use Willow's name or logo in a way that suggests Willow endorses the Firm's legal services. The Services display the Firm's Branding to its clients as described in Section 4.1.

14.8 **Entire agreement.** The Agreement is the entire agreement between the Parties on its subject and supersedes all prior proposals, letters of intent and design partner arrangements on that subject, unless the Order Form expressly preserves them. Any pricing or founding terms from a prior design partner agreement carry over through the Order Form's Special Terms, and continue only as written there. Terms on any purchase order or Firm form are void.

14.9 **Waiver and severability.** A failure to enforce a provision is not a waiver. If any provision is held unenforceable, it will be enforced to the maximum extent permitted and the rest of the Agreement remains in effect.

14.10 **Interpretation.** Headings and summaries are for convenience only and do not affect interpretation. "Including" means "including without limitation." This Agreement will not be construed against either Party as its drafter.

14.11 **Counterparts and electronic signature.** This Agreement and any Order Form may be signed electronically and in counterparts, each of which is an original.

## Signatures

By signing below or accepting electronically, each Party agrees to this Firm Subscription Agreement, including Exhibit A (Data Processing Addendum).

| | **Willow (07042002 Inc.)** | **Firm:** [Firm legal name] |
|---|---|---|
| Signature | | |
| Name | | |
| Title | | |
| Date | | |

## Appendix 1: Sample Client Disclosure Language

*Willow provides this sample for the Firm's convenience under Section 3.3. It is not legal advice. The Firm should adapt it to its practice and to the rules and ethics guidance of each jurisdiction where it practices, including guidance on technology and artificial intelligence, and decides what its clients are told.*

**Storing your documents in Willow.** Our firm uses Willow, a secure online platform provided by 07042002 Inc. (doing business as Willow), to store copies of your estate planning documents and related information, to share them with you, and to share them with the people you choose. Willow stores copies, not originals, and we will tell you where your signed originals are kept. Willow is a technology provider, not a law firm, and does not give legal advice. Willow and its service providers handle your information under confidentiality obligations and as described in Willow's Privacy Policy. Your documents and related information may include sensitive personal information, such as health information, government identification numbers and financial account details, about you and about the people named in your documents, and you consent to Willow

handling that information in order to provide its service. We will invite you to your own Willow account, which is governed by Willow's Member Terms, and you may keep it even if you stop working with our firm. Your account is free, and you can always view and download copies of the documents we send you. Seeing the summaries we approve, sharing documents with others and adding your own documents require a Willow plan, which you buy from Willow directly. Our firm will also keep its own copy of your file, as our professional obligations require.

**AI-assisted review.** Willow uses artificial intelligence to help our attorneys review your documents, for example by identifying the type of each document and the people named in it, and by preparing draft summaries. An attorney at our firm reviews each summary before it is shared with you. Summaries are not a substitute for our advice, and your signed documents always control. To do this, Willow sends your documents to a third-party AI provider, listed on Willow's website, under terms that keep them confidential and prohibit using them to train AI models. Willow does not use your documents to train AI models either.

**Your consent.** By signing this engagement letter, you consent to our use of Willow as described above. If you have questions, or would prefer that we not use Willow for your documents, please tell us before we upload them.